

25STCV19266 25STCV19266

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C07%2F02%2F2026

Source SHA-256: e25e72f2bc6d2ca979a293393964cdf8d888bcb3525e6e3aaf1e96edc8c595e8

Case Number: 25STCV19266 Hearing Date: July 2, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 2, 2026 TRIAL DATE: July 13, 2027

CASE: Elisabetta Rogiani v. Elizabeth V.

Gordon, et al.

CASE

NO.: 25STCV19266

MOTION FOR TRIAL PREFERENCE

MOVING

PARTY: Plaintiff Elisabetta Rogiani

RESPONDING

PARTY(S): Defendants

Elizabeth V. Gordon and Eric Fonseca

TENTATIVE RULING:

Rogiani's

Motion for Trial Preference is DENIED.

Moving Party to give notice.

BACKGROUND

This

is a personal injury action. Rogiani alleges that she was drugged and sexually assaulted at a social gathering, causing her severe and debilitating injuries.

DISCUSSION:

Rogiani moves for trial preference.

The Court denies the motion because Rogiani has not demonstrated that her health requires a preferential trial date to avoid prejudice to her interests in the litigation.

Code of Civil Procedure section

36(a) specifically provides:

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(Code

Civ. Proc. § 36(a) (bold emphasis and underlining added).) If granted, the Court "shall set the matter for trial not more than 120 days from that date."

(Code Civ. Proc. § 36(f).) An application under this section may be supported by an affidavit "signed by the attorney for the party seeking preference" and may be "based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc. § 36.5.) Such an affidavit is not admissible for any purpose other than an application under section 36(a). (Id.) The motion must be accompanied by a declaration from the moving party stating that all essential parties have been served with process or have appeared in

the action. (Code Civ. Proc. § 36(c).)

Rogiani included the required declaration regarding service of parties in her moving papers. (Declaration of Margherita Giubilei ISO Mot. ¶ 5.) It is also undisputed that Rogiani is over 70 years of age and, as the sole Plaintiff, has a substantial interest in the action as a whole. The only question to be resolved on the motion is whether her health requires preference to prevent prejudice to her interests.

Rogiani contends that she is entitled to preference because she is over the age of 70 and the nature of her injuries from the incident described in the Complaint threaten her ability to continue to participate in the litigation. Rogiani's counsel, Margherita Giubilei, declares that Rogiani is suffering from a severe loss in mobility requiring assistance for extended ambulation, chronic sodium dysregulation, and post-traumatic stress disorder. (Declaration of Margherita Giubilei ISO Mot. ¶¶ 10-11.) Attorney Giubilei states that, based on information and relief, these conditions are progressive and not expected to resolve. (Id. ¶¶ 12-13.)

Defendants, in opposition, argue that Rogiani has not carried her burden under section 36(a)(2). The Court agrees. Even if the Court accepts Attorney Giubilei's description of Rogiani's condition at face value, that evidence does not support the conclusion that Rogiani's ability to participate in the litigation will be prejudiced. Certainly, progressive loss of one's mobility is a serious medical condition, but it is not in itself preclusive of a party's ability to participate in the case. As Defendants state, Rogiani offers no basis to conclude that she would be unable to give testimony, communicate with counsel, or attend trial. Nor does she show that preference is necessary to allow her to enjoy the benefits of any relief she might obtain. Notably, trial is currently set for July 13, 2027, slightly more than one year from today. Granting preference would only advance that date eight months earlier. Nothing in the record demonstrates that anything is reasonably likely happen to make that eight-month shortening necessary. Rogiani is therefore not entitled to a preferential trial.

CONCLUSION:

Accordingly, Rogiani's Motion for Trial Preference is DENIED.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: July 2, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.